

UNRAVELLING VIDEO GAME UGC POLICIES: IS COPYRIGHT THE ANSWER?

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Unravelling video game UGC policies: is copyright the answer?

Nadhirah Syahmi Zawawi*

Outstanding LLM Dissertations 2023

Abstract

This thesis concerns the gap in the law within the copyright legal framework when concerned with user generated content (UGC). In order to illustrate this, this thesis first sets out academic discourse on the categorisation and criteria of UGC, followed by existing legal instruments attempting to regulate UGC. This thesis then identifies the gaps that have yet to be regulated within the law. Notably, this thesis identifies that there are no legislative instruments that concern the recognition and ownership of UGC, nor are there any legislative instruments regarding the rights conferred, if any, to the owner of UGC.

This is followed by examples of in game creation (IGC), a subset of UGC, within contemporary video games. This stands as the primary subject matter of this thesis. Having identified and provided examples of in game creations, this thesis then determines the owners of said IGC by delving into the video games' UGC policies, which can be found in their EULA and User Account Agreement. I find through this analysis that there are instances where the IGC is owned by the user, but this is consequently licensed back to the developer.

This thesis then identifies issues with current commercial practice of game publishers in their UGC policies including the presumptuous treatment of UGC as property, as evidenced by licensing clauses, and the presumptive categorisation of creations as UGC, which this thesis will elaborate, is a predetermination that results in creations not being able to justify copyrightability.

The penultimate chapter of this thesis will then answer the question of whether copyright might be the solution to the issues raised in the previous chapter, especially the tension between user and game publisher, and proposing alternative suggestions that may be worth further analysis in the future, including a potential neighbouring rights regime to address the status of UGC.

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Chapter 1 - Introduction

Over the years, video games have grown to become more and more complex and interactive. What started out as pay-per-use arcade games is now a household item, with most households having more than one gaming console hosting a myriad of gaming titles.¹ As game publishers started selling copies of games directly to users, be it digitally or physically, it became standard industry practice for these games to have an end user licensing agreement (EULA) or other similarly designed contract of adhesion. The reason for this was simple, it was to ensure that the game publishers had some control over what was being done with their games once they were sold. This desire for control is not unwarranted as technically savvy users became involved with modifying (or 'modding') games in a way often unsanctioned by game publishers.² Despite that, there are many instances where in game creations were not only sanctioned, but also encouraged, by game publishers and led to the users generating masses of in game creations.

With the growth of in game creations, EULAs, and more specifically user generated content (UGC) policies contained within these contracts, became a growingly important tool used to regulate the relationship between users and game publishers. However, this is not without its downsides. This thesis will look into the legal landscape surrounding UGC and the ways in which game publishers, by way of UGC policies, have taken advantage of the lack of regulation. Users creating UGC find themselves subject to UGC policies to which they have no choice but to consent if they wish to participate in a game. This thesis will also highlight the issues with existing UGC policies, including the legal presumptions being made to the benefit of the game publisher, and will delve into whether integration of UGC into the existing copyright regime may be the answer to these tensions. In addition, this thesis will be proposing alternative solutions to balance the interest of the two parties.

In Chapter 2, this thesis will lay down the various scholarly attempts at defining user generated content and refining it further with the introduction of in game creation, the type of UGC that will be the focus of this thesis. The thesis will then introduce two contemporary video games, namely Minecraft and Animal Crossing New Horizons, which will then be used to identify and illustrate examples of in game creations.

In Chapter 3, this thesis will look into the UGC policies of the abovementioned video games as a means of determining the ownership of said UGC. This thesis will also take this opportunity to

¹ Ramon Lobato, Julian Thomas and Dan Hunter, *Histories of user-generated content: Between formal and informal media economies*, *Amateur Media: Social, Cultural and Legal Perspectives* (Routledge 2013).

² David Hesmondhalgh, *Have amateur media enhanced the possibilities of good media work? Between formal and informal media economies*, *Amateur Media: Social, Cultural and Legal Perspectives* (Routledge 2013).

analyse the UGC clauses for both games and identifying some of the issues to be discussed in the next chapter.

In Chapter 4, the thesis will be providing critique of the current status quo. In particular, this thesis will identify issues with UGC policies discussed in Chapter 3, including the lack of regulation of UGC and the presumption of UGC as property within UGC policies.

In Chapter 5, this thesis will first attempt to determine whether the current copyright regime may be the best solution to navigating the lack of UGC regulation. Following that, this thesis will also be providing alternative solutions beyond the immediate copyright regime.

Chapter 6 will conclude this thesis and summarise the relevant points made in the previous chapters.

Chapter 2 - Introducing UGC and IGC

User-generated content has been a long-standing concept, and especially flourished upon the introduction of participative mega sites³ like YouTube, social media platforms from as early as MySpace, and now Facebook, Twitter and Instagram, virtual worlds such as Second Life in the early 2000s to the now infamous Metaverse and video games like the Sims, Minecraft and Animal Crossing. Although it need not necessarily be digital in nature, it cannot be denied that the digital environment and participative Web has played a crucial role in the rise of UGC.⁴ This chapter will first define UGC based on categorisation and definition introduced by the Organisation for Economic Co-operation and Development (OECD), in addition to other categorisations and nuances introduced by academics. The scope of applicable UGC will then be refined with the introduction of in game creations, which will be the focus of this thesis. This chapter will then introduce two contemporary video games, Minecraft and Animal Crossing: New Horizons, and examples of in game creations created within those games.

Understanding UGC

As with most literature concerning UGC, this thesis will begin by discussing the categorisations and definition introduced by the OECD. In 2007, the OECD released a report on the participative web and user created content. Within this report, UGC or 'user created content (UCC)' as referred

³ Steven Hetcher, 'User-Generated Content and the Future of Copyright: Part One-- Investiture of Ownership' (2008) Vanderbilt Journal of Entertainment & Technology Law Vol 10 Issue 4.

⁴ Hetcher (fn 3).

to by the OECD, was categorised first by the type of UCC and then by the platforms on which UCC is shared.⁵

The UCC types referred to in this report can also be understood, in copyright parlance, as the subject matter of UGC. The categorisations for UGC types include text, fiction and poetry, photos and images, music and audio, video and film, citizen journalism, educational content, mobile content and virtual content.⁶ However, despite this seemingly extensive list, the report only discusses four types of UGC in detail, choosing to omit any elaborations on virtual contents, which would be the most relevant for the purposes of this thesis.

The report then goes on to provide a list of UCC platforms on which UCC is shared. This list included blogs, wikis and other text-based collaboration formats, sites showing feedback on written works, group-based aggregation, podcasting, social network sites, virtual works and content or filesharing sites.⁷ The wide range of platforms listed is indicative of the fact that despite the OECD's efforts to categorise UGC, the breadth and range of creations that are considered UGC is broad and expansive. It is without doubt that should an updated report be published in the year 2023, additional platform categorisations may be added, thanks to the introduction of new digital technology. Nevertheless, this report has set the fundamentals for the identification of UGC today and although not binding, remains a relevant piece of legal literature.

In addition to these categorisations, the report identifies three characteristics for the identification of UGC work, namely publication, creative effort and creation outside of professional routines and practices.⁸ However, it should be noted that even within the report itself, it is acknowledged that the monetisation of UGC is a growing trend that in this day and age has become somewhat of a norm.⁹ This list of identifiers will become relevant later in this chapter as we attempt to identify UGC created within contemporary video games.

Following the OECD's report, Gervais then introduces his own taxonomy of user-generated content. Gervais in his article introduces three new categories. The categorisations being: user-authored content, user-derived content and user-copied content.¹⁰ The categories are relatively self-explanatory, in that user-authored content refers to content authored by the user and does

⁵ OECD, *Participative Web and User-Created Content: Web 2.0, Wikis and Social Networking* (2007).

⁶ *Ibid.* 31.

⁷ *Ibid.* 36.

⁸ *Ibid.* 9.

⁹ Amy Thomas, 'Merit and monetisation: A study of video game user-generated content policies' (2023) *Internet Policy Review* Vol 12 Issue 1.

¹⁰ Daniel Gervais, 'The Tangled Web of UGC: Making Copyright Sense of User-Generated Content' (2009) *Vanderbilt journal of entertainment and technology law* Vol 11 Issue 4.

not copy any existing work, nor does it derive content from any existing work. User- derived content refers to content where the content is derived from an existing work and user- copied content refers to work where there is material copying of an existing work and may be considered an infringement.¹¹ In the latter parts of this chapter, this thesis will also be attempting to categorise in game creations under these categories.

Lastowka, in his 2013 article, also proposes a UGC categorisation framework specific to video games. He proposes that video game UGC can be i) fan works external to the video game, accounting for game playthroughs, fanfiction, cosplays and the likes; ii) original fan works created outside the game which is later incorporated into the game in some way, for example should a player create an original painting and later create a Minecraft version of said painting in blocks; or iii) works created directly within the game which is dependent on the software of the video game, either with or without permission from the game developer.¹²

This brings us to much more recent literature on the categorisation of UGC, a refinement of one of Lastowka's category of video game UGCs by Catton, which is the introduction of in game creations (IGC),¹³ a form of user-generated content where the players of a video game create a work within the confines of a 'parent' video game. This same work is often shared with other players of the game within the confines of the game itself. For the purposes of this thesis, the relevant type of UGC will be IGC, as such excluding other forms of video game related UGC such as livestreams and gaming playthroughs, fanart and other creations external to the game.¹⁴

Of course, the range of IGC and types of video games may vary widely. Catton addresses this in his article and tackles the potential copyright recognition of IGC depending on the type of game in which it is created. He proposes that the likelihood of copyrightability of an IGC is dependent on the originality of the IGC and the type of game in which it is created and divides these games into three categories, namely fixed template games, flexible template games and blank template games.¹⁵ These games were categorised based on the level of creative input that a user would have to exercise over the course of playing the game, with fixed template allowing the least amount of creative control and blank template allowing for the most amount of creative control.¹⁶

¹¹ Ibid.

¹² Greg Lastowka, 'Copyright Law and Video Games: A Brief History of an Interactive Medium' (October 2013) <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2321424> accessed on 16 August 2023.

¹³ Anthony Michael Catton, 'Mere play or authorial creation? Assessing copyright and ownership of in-game player creations (Part 1)' (2019) Interactive entertainment law review Vol 2 Issue 2.

¹⁴ Ibid.

¹⁵ Catton part 1 (fn 13).

¹⁶ Ibid.

It is implied in his research that it is generally more likely for IGC created in blank template games to not only be more viable for copyright protection but also be subject to UGC policies where the UGC belongs with the user.¹⁷ This will be further elaborated on in the latter parts of this chapter. Consequently, for the purposes of this thesis, the games discussed will be blank template games.

From the above paragraphs, it is fair to say that there is no lack of academic discourse on the categorisation of UGC. Several jurisdictions have also conducted public consultations for both the general public and specific stakeholders to gauge concerns and invite proposals on the best way to navigate this rapidly evolving digital landscape.¹⁸

Despite that, little has been put towards actual legislation, be it within the copyright framework or by introducing its own *sui generis* framework. In the United Kingdom, despite early reports¹⁹ and concerns about the rise of UGC and its lack of regulation, this area of law remains unregulated to this day.²⁰ Conversely, in the EU, this thesis notes the implementation of Article 17 of the Directive on Copyright in the Digital Single Market (CDSM Directive),²¹ which imposes a filtering obligation on online content-sharing service providers (OCSSPs).²² Notably, the provision does not literally use the term 'user-generated content' but nevertheless the same is implied in the provision. As this provision was specifically drafted to apply to what can also be known as 'user-uploaded content',²³ and in particular, those uploaded onto OCSSPs, it is not of specific relevance to this thesis.

In the US, Section 512 of the US' Digital Millennium Copyright Act imposes a 'notice and takedown' obligation onto online service providers in exchange for safe harbour.²⁴ The purpose of this

¹⁷ Anthony Michael Catton, 'What is mine in Minecraft? Assessing the copyright and ownership of in-game player creations (Part 2)' (2020) Interactive entertainment law review Vol 3 Issue 1.

¹⁸ Kris Erickson, 'User Illusion: Ideological Construction of "User Generated Content" in the EC Consultation on Copyright' (2014) Internet policy review Vol 3 Issue 4.

¹⁹ Gowers Review of Intellectual Property, Crown (2006) <https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/228849/0118404830.pdf> accessed on 13 August 2023; Professor Ian Hargreaves, Digital Opportunity: A Review of Intellectual Property and Growth (2011) <https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/32563/ipreview-finalreport.pdf> accessed on 13 August 2023.

²⁰ Catton part 2 (fn 17).

²¹ Directive (EU) 2019/790 of the European Parliament and of the Council of 17 April 2019 on copyright and related rights in the Digital Single Market and amending Directives 96/9/EC and 2001/29/EC.

²² Sevrá Guzel, 'Article 17 of the CDSM Directive and the Fundamental Rights: Shaping the Future of the Internet' (2021) European Journal of Law and Technology Vol 12 Issue 1.

²³ Hetcher part 1 (fn 3).

²⁴ Jennifer Urban, Joe Karaganis and Brianna Schofield, 'Takedown in Two Worlds: An Empirical Analysis' (Dec 2017) Journal of the Copyright Society of the U.S.A Vol 64.

provision is to curb the rampant unauthorised uploads of copyrighted work. In this way, the works most likely to be taken down are user-copied content and perhaps, in some instances, even user-derived content. Similar to the EU provision, its focus on user-uploaded content means that this provision is not of relevance to this thesis. Nevertheless, it is necessary to comprehend the extent of UGC regulation today before critiquing the gaps in the law.

Another oft-cited example on the regulation of UGC is the UGC exception introduced in the Canadian Copyright Act 1985, which allows for non-commercial use of UGC. Section 29.21 of the Act provides that where existing subject matter is used, any such use would not be considered infringement, so long as it obliges to the relevant elements as provided under the section. The relevant elements are as follows – that the use or authorised dissemination of the new work is done solely for non-commercial purposes; that the original subject matter and its author, where applicable, are credited in the use; that the individual had reasonable grounds to believe that he was not infringing on the copyright of any existing work; and that any such use or authorised dissemination of the work does not adversely affect the exploitation of the original work, financially or otherwise.²⁵ This provision makes no effort to define UGC or provide a list of identifying criteria for UGC, but this thesis argues that this position allows for a broad reach and reading of the provision. In this way, the provision is applicable to all non-commercial UGC,²⁶ not limited to its subject matter or platform, much unlike the liability provision in the EU's CDSM Directive.

One thing of note when discussing these existing provisions is the fact that they have been drafted for the protection of copyrighted work and not for the recognition of UGC. It would seem from the legislative treatment of UGC that it is perceived as a threat and encroacher to the otherwise neatly placed nature of copyrighted works.²⁷ These provisions are positioned to be more punitive than right bearing. As such, even as these provisions set a good benchmark for legislating UGC, this thesis argues that there is room still for the law to perceive UGC positively and perhaps not simply at the fringes of copyright. We will return to this in both Chapters 4 and 5 of this thesis.

Identifying IGC

In the above section, we have briefly discussed and introduced in game creations as a subset of UGC, which shall be the focus of this thesis. The overarching objective of this thesis is to analyse

²⁵ Section 29.21 of the Canadian Copyright Act 1985.

²⁶ Teresa Scassa, 'Acknowledging Copyrights Illegitimate Offspring: User-Generated Content and Canadian Copyright Law', in *The Copyright Pentology: How the Supreme Court of Canada Shook the Foundation of Canadian Copyright Law* (2013) University of Ottawa Press.

²⁷ Thomas (fn 9).

the tension between the user and the game publisher by way of UGC policies and determine whether copyright would be the right legal framework in resolving that tension. In order to answer that question, the first part of this chapter tackled the introduction of UGC as a concept and now this thesis will introduce the subject matter of analysis, which are the games Minecraft and Animal Crossing: New Horizon. In this section, we will be identifying the IGC created within these games and in the next section, we will delve into the UGC policies of these games to determine who owns the UGC created.

The game Minecraft is a sandbox-adventure video game created by developer Mojang.²⁸ In this game, players have the opportunity to do whatever they wish, as is the nature of sandbox games. Some players may choose to explore and fight zombies, others may choose to resource gather material that can later be used to build weapons and buildings, while others still may choose to create entire city landscapes using the building blocks built into the game, much like one user who created the city Mattupolis, a city named after himself, Matias, and inspired by big American cities.²⁹

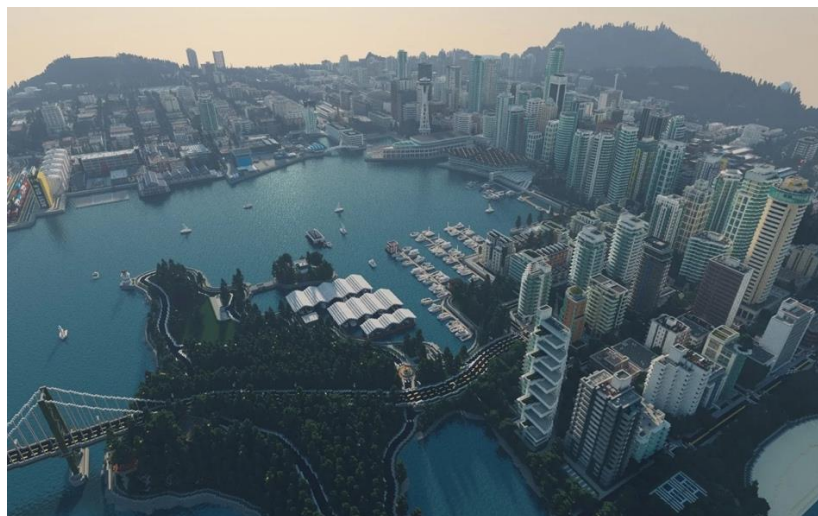


Figure 1 Simon Hill, These Astonishing Minecraft Builds Were Years in the Making (2023) Wired <<https://www.wired.com/story/best-minecraft-builds/>> accessed on 13 August 2023.

It is easy to identify IGCs in sandbox games like Minecraft and Matias is not the only one creating large scale creations within the game. Users are creating images of original cyberpunk cities and

²⁸ Per Landin, 'What is Minecraft?' (Minecraft, 2023) <<https://www.minecraft.net/en-us/article/what-minecraft>> accessed on 14 August 2023.

²⁹ Simon Hill, These Astonishing Minecraft Builds Were Years in the Making (2023) Wired <<https://www.wired.com/story/best-minecraft-builds/>> accessed on 13 August 2023.

reimaginings of Olympus³⁰ and amongst that, Blockworks, a team of professional Minecraft builders³¹ has gone so far as to create a functional in game library with the purpose of disseminating news from heavily censored states.³²



Figure 2 Uncensored Library Press Freedom Index, Press Kit, The Uncensored Library
<<https://www.uncensoredlibrary.com/en>> accessed on 14 August 2023.

The primary examples of Mattupolis and the Uncensored Library stand as good examples for the UGC analysis based on criteria introduced by the OECD. Of the two, Mattupolis is a much more straightforward analysis. The OECD proposes that a UGC should be a work that is published, involve creative effort and be created outside of professional routine.³³ It is clear that both Mattupolis and the Uncensored Library are incredible feats of creative effort and are published works within the game itself, in that it is shared with other users for them to interact with. Images of the creation are also shared with the general public to view.³⁴ Although for the purposes of this thesis, we will not be delving into whether or not publication of images of the creations is equivalent to publication of the creations itself. Suffice it to say that the actual in game creations have been published and shared for consumption between users of the game. We arrive at the third criterion of the creations being created outside of professional routine. Matias, the creator

³⁰ Hill (fn 29).

³¹ The Uncensored Library (Blockworks, 2020) <<https://www.blockworks.uk>> accessed on 13 August 2023.

³² About the Project, The Uncensored Library <<https://www.uncensoredlibrary.com/en>> accessed on 13 August 2023.

³³ OECD (fn 5).

³⁴ Press Kit, The Uncensored Library <<https://www.uncensoredlibrary.com/en>> accessed on 14 August 2023; mattuFIN, Planet Minecraft <<https://www.planetminecraft.com/member/mattufin/>> accessed on 14 August 2023.

of Mattupolis, started creating and sharing the city as an eighth grader and continued to provide updates on the city up until he was a third year architecture student in university.³⁵ Additionally, in a Mattupolis update post, he states that any user may make use of his city so long as there is credit in the description of the project.³⁶ The fact of note here is that Matias did not gain any commercial or monetary benefit from this project. Per Thomas empirical research into game UGC policies, there is a lot of nuance to be introduced on the criteria of works created outside of a professional routine, including the normalisation of ‘monetisation’ of UGC within UGC policies and how monetisation is seemingly distinguished from commerciality.³⁷ Nevertheless, Matias’ work and creation seems to fall outside of any issue of monetisation or commerciality. As such, it would be fair to identify it as a UGC and more specifically, considering its in game nature, an IGC.

This is contrasted to the work being done by Blockworks. Although its work is a clear demonstration of a creative work being published and shared within the game, a quick look at the Blockworks website will reveal that it is a commercial partner working in collaboration with Minecraft to utilise the full capacity of Minecraft’s social, educational and entertainment value.³⁸ In this instance, this is clearly work being done beyond the scope of UGC and as such would not be considered an IGC.

From the example of works derived from Minecraft, I have been able to illustrate one work which fits the criteria of a UGC, as identified by the OECD, and one which does not. We will now conduct the same analysis on works created within the game Animal Crossing: New Horizons.

The game Animal Crossing: New Horizons (ACNH) differs slightly from Minecraft. ACNH is a game created by Nintendo and released in 2020, where players start the game on an island where they can explore, collect resources and decorate.³⁹ For the most part, the decorating aspect of this game is limited to pre-determined options coded into the game by the developers, as such, there is only a finite number of ways in which these options can be put in combination. This part of the game is not the focus of this thesis. Instead, within the game each user is given a ‘Nookphone’

³⁵ mattuFIN, Planet Minecraft <<https://www.planetminecraft.com/member/mattufin/>> accessed on 14 August 2023.

³⁶ Mattupolis: Modern City Project [Release 11] (2021) Planet Minecraft <<https://www.planetminecraft.com/project/mattupolis-large-modern-city-project/>> accessed on 14 August 2023.

³⁷ Thomas (fn 9).

³⁸ About, Blockworks <<https://www.blockworks.uk/about>> accessed on 15 August 2023.

³⁹ Getting Started, Animal Crossing: New Horizons, Nintendo Switch <<https://animalcrossing.nintendo.com/new-horizons/>> accessed on 15 August 2023.

which is essentially a phone with 'apps' that can be used, amongst other things, to renovate and decorate the island. One of those apps is the Custom Designs app.⁴⁰

The Custom Designs app provides the player with a limited number of blank canvases and a selection of tools and colours that the players can use to create images onto the blank canvas. In game, this app can also be upgraded to the Custom Design Pro Editor+ app which would provide additional blank canvases and additional uses for any illustrations created.⁴¹ For the sake of comparison, the Custom Designs app functions much like a Microsoft Paint programme.

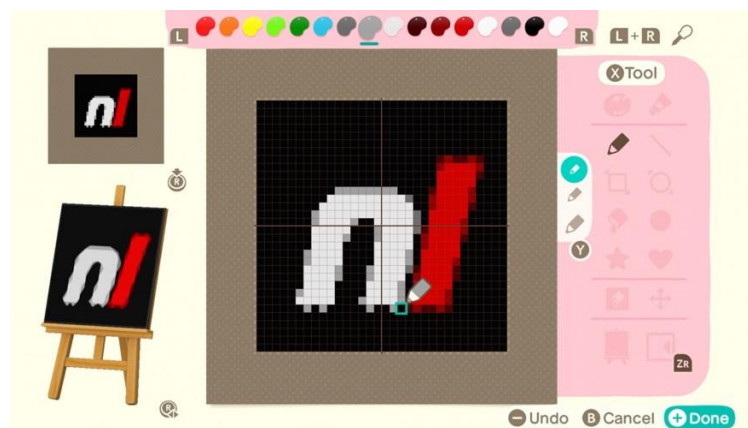


Figure 3 Rebecca Stow and Gavin Lane, *Animal Crossing: New Horizons: Custom Designs - How To Customize Furniture And Import Designs*, Nintendo Life (Nov 2021) <<https://www.nintendolife.com/guides/animal-crossing-new-horizons-custom-designs-how-to-customize-furniture-and-import-designs>> accessed on 15 August 2023.

The designs created can then be used as flags, face paint, designs on in game clothing and, most uniquely, as tile designs used in game to decorate the island.⁴² These designs can then be shared with other users within the game. Each player and design is assigned a unique Creator ID and Design ID, respectively, that can be searched for through an in game Kiosk.⁴³ This function is only available to users subscribed to the Nintendo Switch Online, a subscription which allows users to connect to the Internet and interact with other users within the Nintendo Switch Online digital ecosystem.⁴⁴

⁴⁰ Abby Hood & et. al, Custom Designs, IGN (July 2022) <https://www.ign.com/wikis/animal-crossing-new-horizons/Custom_Designs> accessed on 15 August 2023.

⁴¹ Custom Design Pro Editor+, Nookipedia <[https://nookipedia.com/wiki/Item:Custom_Design_Pro_Editor%2B_\(New_Horizons\)](https://nookipedia.com/wiki/Item:Custom_Design_Pro_Editor%2B_(New_Horizons))> accessed on 15 August 2023.

⁴² Custom Design Pro Editor+ (fn 41).

⁴³ Hood (fn 40).

⁴⁴ Rebecca Stow and Gavin Lane, *Animal Crossing: New Horizons: Custom Designs - How To Customize Furniture And Import Designs*, Nintendo Life (Nov 2021) <<https://www.nintendolife.com/guides/animal-crossing-new-horizons-custom-designs-how-to-customize-furniture-and-import-designs>>

The creativity of these designs is also seemingly limitless. Players have created a wide range of creations from tiles resembling the streets of Japan, patterns resembling café menus, potions shelves, bookshelves and museum signs,⁴⁵ to designs meant to be superimposed onto existing in game clothing template to resemble traditional Japanese attire⁴⁶ and even traditional Indonesian kebaya.⁴⁷ The shareable feature of these patterns and designs also means that players have created an external online archive of patterns so that players may look for designs outside the in game Kiosk using design themes instead.⁴⁸ This archive utilises a tagging feature where each design is tagged with its descriptive features and themes for ease of searchability.

This is another instance where it is arguably straightforward to identify the IGC. These patterns and designs created clearly involve some level of creative effort. Interestingly, the criteria of creative effort do not seem to have a test or benchmark of what is considered sufficient creativity. This is understandable because these UGC criteria have not been legislated, nor have they been brought to court to be clarified.⁴⁹ In this way, it is unlike the copyright test of originality, which differs slightly from one jurisdiction to another.⁵⁰ It might then be fair to presume that even the simplest of designs might subsist in it some level of creativity.

Furthermore, the sharable nature of the designs and patterns, in addition to the fact that the developers themselves have developed a mechanism through which players may share patterns all whilst still within the game, seems to also fulfil the publication criteria of UGC. Finally, all the above examples of custom designs notably do not seem to be commercial or professional in nature and are mere amateur pursuits of creativity by users of the game, including any efforts to create archival systems for ease of access to these patterns. On these notes, it would be fair to assume that the works created using the Custom Design app can sufficiently be considered UGC, and with it being shared and existing within the in game ecosystem, also be considered an IGC.

With consideration for Gervais' method of categorisation, this thesis argues that both these works, and perhaps most IGC created within the confines of a parent game, would fall under the

[crossing-new-horizons-custom-designs-how-to-customize-furniture-and-import-designs](#)> accessed on 15 August 2023.

⁴⁵ The best Animal Crossing QR codes and custom design codes <<https://www.theloadout.com/animal-crossing-new-horizons/qr-codes>> accessed on 15 August 2023.

⁴⁶ Ibid.

⁴⁷ Animal Crossing QR Closet, Tumblr <<https://qr-closet.tumblr.com/post/626475525798526976/traditional-indonesian-kebaya>> accessed on 15 August 2023.

⁴⁸ Animal Crossing Pattern Gallery <<https://acpatterngallery.com/page/3/>> accessed on 15 August 2023.

⁴⁹ Catton part 1 (fn 13).

⁵⁰ University of London Press v University Tutorial Press [1916] 2 Ch 601; Infopaq International A/S v Danske Dagblades Forening (C-5/08) [2009] ECDR 16; Newspaper Licensing Agency Ltd v Meltwater Holding BV ("Meltwater") [2010] EWHC 3099 (Ch).

category of 'user derived content'.⁵¹ This is not necessarily because there has been any purposeful copying of copyrighted work within these creations, but categorised in consideration of the fact that the building blocks upon which these creations are created, rests upon copyrighted works. For Minecraft, the users and builders are building using blocks created by the developers of the game and for ACNH, the players are creating designs using a tool within the game and these designs are likely to be displayed on other surfaces in game, be it flags, faces or floors.

Nevertheless, it is undisputed on both accounts that users of both these games exercised some level of creativity when creating their respective UGC. The next question in need of answering is, who do these IGC belong to?

Chapter 3 - Who owns the IGC?

We know from copyright law that video games, despite its complexity as a form of interactive multimedia work, are protected under copyright.⁵² The copyright of which is often owned by the game publisher, usually for ease of business conduct.⁵³ The question then is when creating something within a video game, technically owned by a company, does the IGC within that game also belong to that company? In an ideal world, we would be able to refer to a piece of legislation that would provide us with the answer but as previously established, the law has yet to recognise UGC as anything beyond a potential threat at the fringes of copyright law.

Our next best alternative, is to look at contract law.⁵⁴ Game developers have tactically employed contracts as a means to circumvent the lack of clarity in copyright law. This can be executed through a number of different means, some of which may be End User Licensing Agreements, Terms of Service (ToS), or even User Account Agreements.⁵⁵ These contracts are usually contracts of adhesions that users have no choice but to consent to should they wish to engage with the video game.⁵⁶ Consequently, a user who chooses not to opt in to the contract would have no access to the video game. The validity of these types of contracts, especially EULAs, has been

⁵¹ Gervais (fn 10).

⁵² Greg Lastowka, 'Copyright Law and Video Games: A Brief History of an Interactive Medium' (October 2013) SSRN Electronic Journal <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2321424> accessed on 16 August 2023; Despoina Farmaki, 'Copyright protection of video games: a comparative study' (2022) Interactive Entertainment Law Review Vol 5 Issue 2.

⁵³ Amy Thomas, 'Can you play? An analysis of video game user-generated content policies', CREATE Working Paper 2022/6 <<https://www.create.ac.uk/blog/2022/05/24/new-working-paper-can-you-play-an-analysis-of-video-game-user-generated-content-policies/>> accessed on 16 August 2023.

⁵⁴ Ibid.

⁵⁵ Thomas (fn 53).

⁵⁶ Catton part 2 (fn 17).

part of academic discourse for more than a decade.⁵⁷ However, with specific regard to EULAs there are also several court cases that are of relevance to its validity.

The first case is the US Seventh Circuit case of *ProCD, Inc v Zeidenberg*,⁵⁸ where the court held that shrink wrap licenses, a form of EULA which is tied to the physical packaging of a game,⁵⁹ are enforceable contracts under the US Uniform Commercial Code.⁶⁰ Still in the US, we have the case of *Davidson and Associates, Inc v Jung*⁶¹ which addresses the validity of click wrap licenses, a form of EULA that users enter into digitally by clicking through the terms and usually clicking 'I Agree' at the end of the terms.⁶² In Canada, the validity of click wrap licenses was raised in *Rudder v Microsoft Corporation*.⁶³ In both cases, the courts held that that click wrap licenses are valid and legally binding.⁶⁴

Conversely, the UK courts have not had much to say by way of the validity of EULAs. The one case of note within the UK would be the Scottish case of *Beta Computers (Europe) Limited v Adobe Systems (Europe) Limited*,⁶⁵ which also held that shrink wrap licences are valid. With regard to click wrap licences, Catton⁶⁶ argues that in light of the Joint Issue Paper between the Law Commission and the Scottish Law Commission,⁶⁷ where it was suggested that a digital click may bear the same legal weight as an actual signature, and Article (1) of the E-Commerce Directive,⁶⁸ which requires member states to 'ensure that their legal system allows contracts to be concluded by electronic means',⁶⁹ it seems likely that click wrap licences will be found to be valid should the matter be brought to court.

In light of the above, it would be fair to presuppose the validity of the contracts containing the relevant UGC policies. We now turn to the UGC policies of the two previously discussed video

⁵⁷ Ibid.

⁵⁸ 86 F.3d 1447 (7th Cir. 1996).

⁵⁹ Catton part 2 (fn 17).

⁶⁰ Christina Hayes, 'Changing The Rules Of The Game: How Video Game Publishers Are Embracing User-Generated Derivative Works' (Spring 2008) Harvard Journal of Law & Technology Vol 21 Issue 2.

⁶¹ 422 F.3d 630 (8th Cir. 2005).

⁶² Renee Zmurchyk, 'Contractual Validity Of End User Licence Agreements' (2006) Appeal: Review of Current Law and Law Reform Vol 11.

⁶³ (1999), 2 C.P.R. (4th) 474 (Ont. Sup. Ct.).

⁶⁴ Zmurchyk (fn 62).

⁶⁵ [1996] FSR 367.

⁶⁶ Catton part 2 (fn 17).

⁶⁷ The Law Commission and the Scottish Law Commission, Unfair Terms In Consumer Contracts: A New Approach? (July 2012) <https://www.lawcom.gov.uk/app/uploads/2015/06/unfair_terms_in_consumer_contracts_issues.pdf> accessed on 18 August 2023.

⁶⁸ Directive 2000/31/EC on certain legal aspects of information society services, in particular electronic commerce, in the Internal Market (E-Commerce Directive).

⁶⁹ Article 9(1) of the E-Commerce Directive.

games. The first UGC policy that this thesis will analyse will be the one found in the Minecraft End User Licensing Agreement.⁷⁰ The sections concerning UGC reads as follows:

OWNERSHIP OF MINECRAFT REALMS AND OTHER THINGS

...

You of course are going to make your own stuff in and using Minecraft Realms. We don't own the original stuff that you create and we don't claim any ownership of anything that we shouldn't. We will however own things that are copies (or substantial copies) or derivatives of our property and creations (outlined above) - but if you create original things they aren't ours.

So, as an example:

a single block - we own that;

a Gothic Cathedral with a rollercoaster running through it - we don't own that.

...

YOUR CONTENT

If you create things using Minecraft Realms or make any content or material available on or through it ("Your Content"), you also agree to give us and other people who have access to it permission to use it. That also means we can use, copy, modify, adapt, distribute, publicly display and otherwise make available Your Content to others (without payment or restriction). That includes anything you build, craft or create and any communications you make such as through any chat functionality we have or make available. You also agree to let us permit others to use, copy, modify, adapt, distribute and make available Your Content and you accept that you may not get a credit or attribution for this.

...

These permissions last forever and cannot be revoked.⁷¹

From the above excerpt, there are two points that this thesis wishes to emphasise. The first is the ownership of UGC and the second is the licensing of UGC. The Minecraft EULA is known for its use of laymen's terms and not employing legal jargon in its legal documents.⁷² That being said, the impact of the provisions remains the same.

With regard to ownership of UGC, this thesis notes that the Minecraft EULA does not explicitly state who owns any UGC created in the game. Instead, the Minecraft EULA states that where a user creates anything original within the game, the creation does not belong to Minecraft. At first reading, this would make the ownership of UGC inconclusive. There can be a number of reasons for this wording, one of which is that Minecraft would not have the authority to confer any such ownership of UGC, even if it did belong to the user. Another reason would be to limit the

⁷⁰ Minecraft End User License Agreement (EULA), Minecraft <<https://www.minecraft.net/en-us/terms/nintendo-switch>> accessed on 18 August 2023.

⁷¹ Minecraft EULA (fn 70).

⁷² Catton part 2 (fn 17).

developer's liability⁷³ in the event that any UGC infringed any third-party intellectual property. For example, if a user decided to create a recreation of an existing work of art, this clause would mean that Minecraft would not be liable for any such creation within its games, since it stakes no claim of ownership over the creation.

However, to ensure the smooth running of the game, Minecraft follows up the ownership clause with a permission clause. This is provided under the heading "Your Content" and states that the user "also agree to give us (Mojang) and other people who have access to it permission to use it". Catton distinguishes Mojang's use of the term 'permission' from the legal use of licensing.⁷⁴ This is interesting, since the next line includes a list of things that Mojang would be permitted to do with this permission, including the right to "use, copy, modify, adapt, distribute, publicly display and otherwise make available Your Content to others (without payment or restriction)".⁷⁵ Notably, the list of actions permitted does not differ from a conventional licensing clause. This thesis would argue that this is merely a difference in choice of language in line with Mojang's usual choice to use simple layman's terms and would not result in a difference in legal implications should it be tested in court. This is, in its essence, a licensing clause.

That being said, one would be required to own a property and have the right to license said property before it can be licensed.⁷⁶ A permission (or licensing) clause requiring the user to permit the use of (or license) a property would presume that the user owned the property in the first instance and that the user had the right to license said property. There are a number of critical remarks to be made about the assumptions being made that will be addressed in Chapter 4 but for now, this thesis would argue that based on the above permission clause, it is reasonably implied that the UGC belongs to the user. It should also be noted that a permission (or licensing) clause is not equivalent to an assignment clause. Consequently, even as a user permits the use of (or licenses) these rights, this does not detract from their ownership of the UGC.⁷⁷ The question now, of course, is what exactly is ownership of UGC and what rights, if any, does it confer to the owner? This thesis will delve into these questions in the next few sections but first we will look into ACNH's UGC policy to examine ownership and licensing of that UGC.

⁷³ Neha Ahuja, 'Commercial Creations: The Role of End User License Agreements in Controlling the Exploitation of User Generated Content' (2017) *The John Marshall review of intellectual property law* Vol 16 Issue 4.

⁷⁴ Catton part 2 (fn 17).

⁷⁵ Minecraft EULA (fn 70).

⁷⁶ Steven Hetcher, *User-Generated Content and the Future of Copyright: Part Two - Agreements Between Users and Mega-Sites* (2008) *Santa Clara High Technology Law Journal* Vol 24 Issue 4.

⁷⁷ *Ibid.*

The most relevant parts of ACNH's UGC policy can be found in Clause 6 of the Nintendo Account User Agreement (the ACNH Agreement) which reads:

6. User-Generated Content

The Nintendo Account Services may allow you to create and share User-Generated Content. "User Generated Content" means text, images, audio, video, or other content that you create and share with the public or other users of the Nintendo Account Services.

You own your User-Generated Content. However, Nintendo retains ownership of any Nintendo Intellectual Property (as defined in Section 12) that is contained in your User-Generated Content. Since you own and control your User-Generated Content, you are responsible for it.

...

By accepting this Agreement, you give Nintendo permission to use and change your User Generated Content in any way and for any purpose for free. More specifically, you grant Nintendo and its affiliates and subsidiaries a worldwide, royalty-free, irrevocable, perpetual, non-exclusive, and sublicenseable license to use, reproduce, modify, adapt, publish, translate, distribute, perform, and display all or any portion of your User Generated Content, and to incorporate your User-Generated Content in other works, in any form, media or technology now known or later developed, including for promotional or marketing purposes, without any payment to you.

Your User-Generated Content may be viewed, reproduced, published and/or modified by Nintendo and third parties. Nintendo may delete any User-Generated Content from the Nintendo Account Services and/or Nintendo servers at any time, for any reason, in its sole discretion without notice or liability to you. Nintendo reserves the right to not post or publish User-Generated Content and is not obligated to store any User-Generated Content.⁷⁸

ACNH's UGC policy is neatly contained within a singular clause of the ACNH Agreement. Unlike Minecraft's EULA, the ACNH Agreement utilises conventional legal language. Much like with Minecraft's UGC policy, this thesis will now determine the ownership of UGC and the licensing of UGC pursuant to the ACNH Agreement.

In the first paragraph of the above clause, it defines what exactly would fall under UGC within the meaning of the contract and then in the next paragraph explicitly states "You own your User-Generated Content."⁷⁹ This thesis would argue that this is a mere recognition of rights, as opposed to any sort of assignment or conferment of rights from the publisher of the game, Nintendo, to the user. The UGC that was earlier identified within ACNH also fits the definition of UGC under this contract. In this case, it is an image that is created by a user and shared with other users of the Nintendo Account Services. Consequently, it would be fair to conclude that

⁷⁸ Nintendo Account User Agreement, Nintendo <<https://accounts.nintendo.com/term/eula/US>> accessed on 20 August 2023.

⁷⁹ Ibid.

the user would own any UGC they create within the ACNH game, including patterns and designs created using the Custom Design app in the game.

In the latter parts of the same clause it states “you give Nintendo permission to use and change your User Generated Content in any way and for any purpose for free”. Immediately following that statement, it further specifies that the user grants Nintendo a license to, *inter alia*, “use, reproduce, modify, adapt, publish, translate, distribute, perform, and display all or any portion of your User Generated Content”.⁸⁰ We note in this instance the use of the legal term ‘license’ as means of permitting use. This sits parallel to Minecraft’s permission clause and further reinforces the point that ‘permission’ clauses are not necessarily more forgiving on users’ rights than licensing clauses, seeing as both the Minecraft and ACNH clauses permit and license the use of UGC in very similar ways.

The two UGC policies discussed have illustrated the different ways a UGC policy might recognise user ownership of UGC, either by way of implied statements or explicit statements. These UGC policies also include permission and licensing clauses wherein the users’ UGC rights are licensed to the game publisher for ease of business conduct.

It should also be noted that the two examples used for the purposes of this thesis were selected for the fact that these UGC policies recognised user ownership of UGC. A glance at other empirical research on EULAs and UGC policies will illustrate that this is outside the norm.⁸¹ However, the use of the above examples also highlights the flaws in what might be considered ‘best case scenario’ UGC policies in the video game industry. On the flip side of this coin are UGC policies where the UGC belongs with the game developer and instead, game developers permit use of UGC for the user. This provides the game developer with a lot more control over the use of its IP and UGC and is more often the case in fixed and flexible template games⁸² where the users might not exert as much creativity in the process of playing the video game.

Chapter 4 – Critique of the status quo

In the previous chapters, we were able to illustrate the existence of IGC in both Minecraft and ACNH and its ownership pursuant to their respective UGC policies. In this section of the thesis, we will elucidate the flaws with this system and how adhesion contracts are not a sufficient replacement for effective legislative recognition of UGC as some form of intellectual property. This thesis argues that UGC policies, and adhesion contracts more generally, act as a bandage

⁸⁰ Nintendo Account User Agreement (fn 78).

⁸¹ Thomas (fn 9).

⁸² Catton part 1 (fn 13).

over a festering wound. It covers up something that regulators are reluctant to legislate but the reality is that with every new iteration of these contracts, certain presumptions become more and more ingrained in industry norms and it will not be long before arguments are made that these norms cannot be challenged or changed.

Lack of regulation of UGC

The core issue at the heart of this thesis is the lack of regulation of UGC within the legislative framework, be it within copyright or something *sui generis*. As a result of this, UGC is thrown into ambiguity. Some of these ambiguities include the question of what exactly constitutes UGC, who owns the UGC, what rights are conferred to an owner of UGC and what exactly can be done with those rights, if anything. At the core of it, these questions stem from the fact that we cannot definitively say that UGC is a type of property that confers rights to its owner, and yet this same presumption is made in every UGC policy where UGC is licensed from the user to the developer.⁸³

Of these questions, the first is the easiest to answer, thanks to the long-running academic discourse on the nature of UGC and its characteristics. The answer to this can be found in Chapter 2, which provides several examples of academic categorisations of UGC. For the sake of brevity, the same will not be repeated here. However, it should be noted that academic discourse⁸⁴ and the OECD⁸⁵ do not make up for the lack of a legal instrument. The material presented in the previous chapter is neither conclusive nor is it binding. In that sense, the most reliable definitions of UGC will be the ones found in the EULAs, as they are the ones applicable to the creation at hand. The issue with that is that there is no one definition of UGC across all contracts. This is distinguished from copyright law, where national systems of copyright would have provided the exact subject matters that can be protected under copyright, and also what the criteria are for creating a valid work for copyright protection.⁸⁶ UGC would undoubtedly benefit from something with that level of clarity.

The issue of who owns UGC has also been answered in a previous section of this thesis and will only be reiterated briefly. The lack of regulation of UGC makes it so that there is no legislation to refer to when determining its owner. As such, the next best alternative is to refer to contracts with UGC policies. The previous chapter analysed the relevant UGC policies and hinted at some of the flaws in the drafting of those policies. We will now elaborate on some of the issues present

⁸³ Minecraft EULA (fn 70); Nintendo Account User Agreement (fn 78).

⁸⁴ Gervais (fn 10); Lastowka (fn 12); Catton part 1 (fn 13).

⁸⁵ OECD (fn 5).

⁸⁶ Copyright, Design and Patents Act 1988.

in those contracts, including the presumption of UGC as property and the presumptive categorisation of creations as UGC.

Presumptuous treatment of UGC as property

In order for a property to be licensable, it must first exist and be owned. There is plenty of academic discourse on the treatment of copyright as a property right.⁸⁷ However, to slightly curtail that discussion, Section 1(1) of the Copyright, Design and Patents Act 1988 (CDPA) affirms that copyright is in fact a property right. Cohen argues that fundamentally, copyright as a property right regime is a legal framework that performs specific economic functions that seeks to manage a particular type of resource.⁸⁸ In essence, copyright seeks to manage creative works by means of regulating the economic rights conferred to owners of copyright protected work. Litman also argues that recognition of something as property is a means of exerting control over the property.⁸⁹ When the law recognises a creation as property, there comes with it alienability of said property. Alienability in this sense means that a property can be transferred or licensed, in parts or as a whole. Litman also argues that this specific feature of property often benefits the parties with better bargaining power, with alienability lending itself as a form of control.⁹⁰

Fundamentally, Cohen and Litman do not consider that treatment of copyright as property resolves the existing issues in the copyright legal framework. Instead, they arguably believe that framing copyright as mere property reinforces existing power imbalances. However, although that may be true for works already within the copyright legal framework, it may be worth considering whether recognising UGC as property might be a way to wrest back control from existing corporate powers and providing legal recourse against unsubstantiated legal presumptions.

To further elaborate on these presumptions, this thesis will briefly explain the conceptualisation of legal property. There are two ways in which someone could come about obtaining property. The first is by way of initial investiture, or creation of said property and its consequent legal recognition.⁹¹ An example of this would be in copyright law, wherein someone might create a work that meets the relevant requirement of copyright protection and following the Berne Convention's philosophy of automatic recognition of rights, could automatically be considered

⁸⁷ Jessica Litman, 'What We Don't See When We See Copyright as Property' (Nov 2018) Cambridge Law Journal Vol 77 Issue 3.

⁸⁸ Julie Cohen, 'Copyright as Property in the Post-Industrial Economy: A Research Agenda' (2011) Wisconsin Law Review Vol 2011 Issue 2.

⁸⁹ Litman (fn 87).

⁹⁰ Ibid.

⁹¹ Hetcher part 2 (fn 76).

the owner of a copyrighted work.⁹² The second way is by legal means, usually in the form of an assignment contract.⁹³ In the realm of copyright, someone might obtain the ownership of a copyrighted work when they are assigned the ownership of said work.

UGC as a creation does not fully undergo either of the above. Although UGC is created, there is no legal force recognising it as a form of property, nor is UGC conferred from the party already possessing property, the publisher with ownership of copyright work in the form of the parent game, to the user. Instead, users create a work, likely with the potential for copyright protection, and are disadvantaged by having the creation be categorised as UGC by game publishers.⁹⁴ We also previously established that recognition of user-owned UGC in UGC policies is mere recognition of UGC and not an assignment or conferment of rights. As such, for all accounts, UGC exists as a creation in a legal vacuum, with none of its legal properties ever having been clarified by any legislation.

Despite that, game publishers have, to all intents and purposes, treated its existence as property. Notably, in both UGC policies discussed in the previous chapter, the game publishers had included a clause wherein the user was required to license their UGC to the game publisher. In the ACNH UGC policy, the licence is additionally sublicensable.⁹⁵ This is especially interesting as there is no legislation that has recognised UGC as alienable property or conferred the UGC with property or economic rights that would allow for UGC to be licensed. Nevertheless, the validity of UGC licensing clauses has yet to be brought to court and will remain in ambiguity unless and until something changes in the legal landscape.

Presumptive categorisation of creations as UGC

An additional issue with the presumptive categorisation of these creations as UGC is that it preemptively takes away any potential for copyright protection.⁹⁶ By labelling a creation as an infringement of a copyrighted work, it loses any ability to be protected within the copyright legal framework. In truth, most copyrighted work has derived some inspiration from an existing work and most digital creations are created using digital tools.⁹⁷ Although this might seem like a reductive oversimplification of the nature of Minecraft and ACNH's Custom Design Tool, this thesis would argue that a major distinguishing factor between these games and mainstream

⁹² Article 5(2) of the Berne Convention for the Protection of Literary and Artistic Works 1886.

⁹³ Hetcher part 2 (fn 76).

⁹⁴ Litman (fn 87).

⁹⁵ Nintendo Account User Agreement (fn 78).

⁹⁶ Litman (fn 87).

⁹⁷ Kris Erickson, 'User illusion: ideological construction of 'user-generated content' in the EC consultation on copyright (2014) Internet Policy Review Vol 3 Issue 4 <<https://policyreview.info/articles/analysis/user-illusion-ideological-construction-user-generated-content-ec-consultation>> accessed on 23 August 2023.

digital creation software like Microsoft Paint or Adobe Photoshop, is the way users create within a digital environment and these creations have contributed to these video games' network externalities.⁹⁸

One might try to distinguish between the two by arguing that the IGC we identified earlier are being built in a digital environment that in itself is copyright protected, and consequently, derivation from the original work is inherent in its creation. Some would argue that that should be enough to refuse copyright protection because a creation that subsists within it an existing work would have a harder time meeting the originality threshold. However, when considering the nature of creativity and the way contemporary culture has consistently built on itself,⁹⁹ this thesis would argue that it is not an impossibility.

It seems counterintuitive for these game publishers to be alienating their users by pre-emptively stopping their users from potentially obtaining copyright protection. The concern is also in future user participation. Although these UGC policies do not seem to curb user enthusiasm, it would be unfortunate if this resulted in a chilling effect and a withdrawal of user creativity and participation.¹⁰⁰ One would expect that a creative environment would develop policies that encouraged creative engagement and provided room for users to contribute towards the value of the game. However, the predetermination of creations as UGC seems intent on alienating users out of owning any actual copyrighted work.

Critique based on the Lockean labour theory and economic theory

Amidst arguing the flaws in the legal framework, it is easy to lose sight of why this is an important issue at all. This can be explained through copyright theory. The two copyright theories that will be referred to are the Lockean labour theory and the economic theory. This thesis believes that the above theories are in line with the proposal for recognition of UGC as property.

The Lockean labour theory posits that where a creator has exercised creative labour over a property, they are entitled to ownership of said property. This theory strongly disapproves of the misappropriation of someone's labour and property.¹⁰¹ The tension in our present scenario is one

⁹⁸ Greg Lastowka, 'Minecraft as Web 2.0: Amateur Creativity & Digital Games', *Amateur Media: Social, Cultural and Legal Perspectives* (Routledge 2013); Lastowka (fn 12); Yong Liu, Enping Shirley Mai and Jun Yang, 'Network externalities in online video games: an empirical analysis utilizing online product ratings' (Springer 2015) *Marketing Letter* 26 <<https://link.springer.com/article/10.1007/s11002-015-9390-x#citeas>> accessed on 23 August 2023.

⁹⁹ Erickson (fn 97); Cohen (fn 88).

¹⁰⁰ Simone Schroff, *The purpose of copyright—moving beyond the theory* (2021) *Journal of Intellectual Property Law & Practice* Vol 16 Issue 11.

¹⁰¹ Mitchell Longan, 'A System Out of Balance: A Critical Analysis of Philosophical Justifications for Copyright Law through the Lens of Users' Rights' (2023) *Michigan Journal of Law Reform* Vol 56 Issue 3.

between the existing property owned by the game publisher and the new creation by the user. The Lockean theory argues that creative works should remain as part of the commons (not in the economic sense, but in the sense that it lends itself to a larger creative landscape) and contribute to raw materials which are then accessible for use in the creation process of another creative work.¹⁰² This is not to say that copyright owners should not have economic control over their work but instead, that it should not be an *absolute* control that would consequently detract from the progress of science and arts. This theory makes a strong case for why UGC created within parent games should not be struck outright from being protected under copyright.

Conversely, the economic theory behind copyright is not as interested in the theories of creation but is more concerned with ensuring that creations are incentivised and rewarded and that owners are given avenues to benefit economically from their works.¹⁰³ Although the recognition of UGC as work may seem contrary to the economic theory, this thesis argues otherwise. The reasons for this lie in the non-substituting nature of the UGC created¹⁰⁴ and the network externalities of video games.¹⁰⁵ What this means is that any creation in the context of what has been discussed in this paper is unlikely to create competition for the video game and the game publishers within its specific market. UGC created within Minecraft and ACNH are unlikely to compete with its parent game, largely due to its reliance on the parent game for its existence and creation. The UGC have also largely had a net positive effect on these video games, particularly when considering network externalities. Both Minecraft and ACNH are, to a certain extent, communal games that benefit from having a larger group of players. The overall gaming experience is enhanced when more players are involved in building the gaming ecosystem.¹⁰⁶ In Minecraft, the creation of UGC in individual servers encourages players to invite friends onto their own servers to share the experience of playing in their creations. In ACNH, the more users create patterns and designs in the Custom Design app, the larger the pool of patterns and designs that other players have access to. The value of these games increases when more users actively engage in the creation process in game.

Knowing what we know of the nature of these UGC and their contributory nature to the value of these games, this thesis argues that there is inherent merit to these creations. It is unfortunate then that this is not reflected in either the contracts regulating the relationship between the user

¹⁰² Cohen (fn 88).

¹⁰³ Longan (fn 101).

¹⁰⁴ Ibid.

¹⁰⁵ Yong Liu, Enping Shirley Mai and Jun Yang, Network externalities in online video games: an empirical analysis utilizing online product ratings (Springer 2015) Marketing Letter 26 <<https://link.springer.com/article/10.1007/s11002-015-9390-x#citeas>> accessed on 23 August 2023.

¹⁰⁶ Ibid.

and the game publisher, nor is it reflected in the present legal framework. The reason why this matters is that not much seems to distinguish this form of UGC from a valid work under copyright law. Arguably, if not for the predetermination of this work as UGC pursuant to UGC policies, then they might even stand a chance in court in being protected under copyright. It would be unfortunate if this treatment and alienation of users ultimately resulted in a chilling effect and lack of participation from users.

Past treatment of virtual property as a means of justifying the regulation of UGC

This thesis will also extrapolate reasoning from the case of *Bragg v Linden*,¹⁰⁷ which concerns a user's virtual property. In this case, the user, Bragg, had purchased virtual property in the game Second Life using real money, assuming that his supposed ownership of said property was similar to ownership of real landed property. Following some untoward conduct by the user, the game publisher, Linden, then decided to deactivate Bragg's account. Bragg had no real legislative recourse. The case was brought to court, where the court held the contract was procedurally and substantively unconscionable. However, the court never went in-depth regarding the validity of the property and Bragg's ownership of the property.¹⁰⁸

This case stands as a legal lesson regarding ownership of property within virtual worlds and video games. This thesis argues that the dispute that arose in *Bragg v Linden*¹⁰⁹ was the result of legal ambiguity and a great imbalance in negotiating power between the user and game publisher. As video games become more and more accessible and users grow to be younger and less experienced, the disparity in negotiating power grows larger. This thesis argues that it would not be wise to wait for another such issue to be brought to court before we realise there is merit in these UGC and the recognition of said UGC within the legal framework.

In the next chapter, we will attempt to answer the question of whether copyright might be the most suitable existing framework for addressing the issues raised in this chapter or if we might have to turn elsewhere to address these ambiguities.

Chapter 5 - Is the integration of UGC into copyright law the solution?

In the last chapter, we identified some primary issues with the current status of UGC and its relationship with the current copyright legal framework. In this chapter, we ask whether integrating UGC into the copyright legal framework might be the solution to this legal ambiguity. We will answer this question by first looking at whether IGC would fit the criteria of a valid work

¹⁰⁷ Marc Bragg, v. Linden Research Inc. and Philip Rosedale, Defendants. 487 F.Supp.2d 593 (2007).

¹⁰⁸ Catton part 2 (fn 17).

¹⁰⁹ Bragg v Linden (fn 107).

under copyright and following that, determine whether that protection would be sufficient to resolve the issues raised above.

Pursuant to Article 5(2) of the Berne Convention,¹¹⁰ copyright protection is automatically conferred when a valid work is created, with no requirement for formality. This means that any work that fulfils the criteria of copyright protection is automatically conferred protection without needing to be registered. In the UK, copyrighted work is protected pursuant to the CDPA. As the UK is a signatory of the Berne Convention, the abovementioned philosophy of automatic conferment has been adopted into domestic law and applies in the UK. In order to determine that a work is a valid work and be conferred copyright protection, the work should fall under one of the subject matter categories provided in the CDPA, be a work that is fixed permanently and meet the originality standard. The originality standard in the UK was initially just the display of judgement, skill and labour.¹¹¹ This has recently been supplemented with the addition of ‘authors’ own intellectual creation’ following the EU cases of *Infopaq International A/S v Danske Dagblades Forening*¹¹² and *Bezpečnostní softwarová asociace – Svaz softwarové ochrany v Ministry of Culture of the Czech Republic (“BSA”)*.¹¹³ In a move towards pre-Brexit EU harmonisation, the UK courts later took into account the decision in *Infopaq*¹¹⁴ in the UK court finding of *Newspaper Licensing Agency Ltd v Meltwater Holding BV (“Meltwater”)*.¹¹⁵

Catton, in part two of his two-part article, conducted this same analysis and went in-depth into the potential protection of IGC under copyright law.¹¹⁶ As part of this research, he divided games into three categories – fixed template games, flexible template games and blank template games. The categories are based on the level of creativity and freedom involved in the gameplay of any one game. The games we used for the analysis in this thesis fell into the blank template games category. In his article, Catton found that IGC created within flexible and blank template games were more likely to fulfil the criteria for copyright authorship.¹¹⁷ However, in the second half of the paper, Catton identified EULAs, and UGC policies more generally, as a determinant for copyright authorship and ownership that users would not be able to overcome, at least within the current legal framework. All this to say that, even if a UGC can appropriately be considered a

¹¹⁰ Article 5(2) of the Berne Convention for the Protection of Literary and Artistic Works 1886.

¹¹¹ *University of London Press v University Tutorial Press* [1916] 2 Ch 601.

¹¹² (C-5/08) [2009] ECDR 16.

¹¹³ (C-393/09).

¹¹⁴ *Infopaq* (fn 112).

¹¹⁵ [2010] EWHC 3099 (Ch).

¹¹⁶ Catton part 2 (fn 17).

¹¹⁷ *Ibid.*

valid work and be afforded copyright protection, the pre-emptive categorisation of such creations as UGC would prevent copyright law from applying to those works.

Iljadica has also discussed the potential for copyright to subsist within UGC.¹¹⁸ However, one must beg the question of the value of any subsistence of copyrightability in UGC, when existing industry standards have set up a regime that users are unable to work around. It would seem that what was previously perceived as a beacon, shining light onto a legally ambiguous regime, has become the cage that has boxed in the user. Litman has also argued that new property rights, or mere recognition of property, will not solve the existing issue of imbalanced bargaining power present in EULAs.¹¹⁹ On that note, this thesis is inclined to argue that perhaps this matter requires a solution beyond copyright law.

Of course, all is not lost. The reality is that legislatures are less likely to take away from existing regimes, and more likely to add to them. The next and final section of this thesis will briefly introduce some alternative solutions that may be worth considering should we decide that UGC is in fact the intellectual property of the future and worth investing and regulating now.

Alternative solutions

Gervais argues that UGC exists because people say it does.¹²⁰ This thesis has not tried to refute that statement. Instead, this thesis has argued for better groundwork for the recognition of UGC. In the above section, we have illustrated how copyright bears the potential of resolving this issue of ambiguity but that realistically, the existing regime is unlikely to expand in a way that would accommodate UGC and resolve the tension present in industry standard EULAs.

This thesis believes that Canada's UGC exception was in the right when it utilised a broad definition of UGC and did not limit UGC to its platforms, but instead encompassed all forms of the work on all platforms. Where it would offer change, however, is in the framing of UGC as a copyright exception. Scholars have been realistic in coming to terms with the fact that parliaments are unlikely to work towards legislating UGC and turned to contract law as a means to understand how UGC is being handled within the creative industries.¹²¹ While that is convenient, this thesis argues that it is simply not enough, not least because UGC is being treated as property while legislation has yet to crop up where UGC is recognised as any form of

¹¹⁸ Marta Iljadica, *User generated content and its authors*, Research handbook on intellectual property and digital technologies (2020) Edward Elgar Publishing.

¹¹⁹ Litman (fn 87).

¹²⁰ Gervais (fn 10).

¹²¹ Thomas (fn 9).

property at all. It seems highly contrary that legislation is treating UGC as an exception and yet contracts are treating UGC as property.

This thesis would propose the possibility of a neighbouring rights regime. This final proposal assumes that industry norms and existing legislation are unlikely to change and create space within the existing regime to include UGC. Perhaps a neighbouring or related rights regime, one wherein UGC may still be recognised as a property, but with limited economic and distributive rights. Although this is not a parallel comparison, this new neighbouring rights provision might be compared to the EU's existing press publishers' rights. Under Article 15 of the CDSM Directive, press publishers are provided with the right of reproduction and communication to the public pursuant to Article 2 and Article 3(2) of the InfoSoc Directive¹²² for the use of their press publications by digital intermediaries.¹²³

The comparison being made here is in the symbiotic relationship of the press publishers and the information society service providers. The issue that led to the creation of this provision was that press publishers argued that digital intermediaries might be infringing press publishers' rights and freeriding off press publishers' work, while digital intermediaries argued that they were providing a service that allowed Internet users to access information more easily and consequently led traffic back to press publishers.¹²⁴ The reality was that this was a symbiotic relationship, whereby, to a certain extent, both parties derived value from the service of the other. The compromise was that digital intermediaries were granted a short-term reproduction and communication right to ensure that they could effectively put forward publications without infringing the copyrights of press publications. It should be noted that a short-term right works in this instance because of the speed at which news circulates and the length of time at which it remains relevant.

This thesis would argue that the same tension exists between users and game publishers. In reality, they exist in a symbiotic relationship wherein the user benefits from the game and the game publisher benefits from network externalities when users create in game UGC. Of course, this is not as simple as adopting a neighbouring rights regime, but notably, the symbiotic nature of the relationship and the speed at which creations are created perhaps make this an option that should be discussed further. Perhaps UGC creators would benefit from having their property recognised and limitations set forth for how game publishers may interact with said property,

¹²² Directive 2001/29/EC on the harmonisation of certain aspects of copyright and related rights in the information society.

¹²³ Ula Furgał, 'The Emperor Has No Clothes: How the Press Publishers' Right Implementation Exposes Its Shortcomings' (2023) GRUR International Vol 72 Issue 7.

¹²⁴ Ibid.

providing not only legal recognition but also potentially leverage to better balance out the dynamics between these two parties.

Chapter 6 - Conclusion

The relationship between user and game publisher has existed for as long as games have been commercially sold. However, as technology developed, so did this relationship and the means with which it was regulated. Many scholars have acknowledged the role of EULAs in overcoming the lack of UGC regulation and the ambiguities in the law. This thesis sought out to establish how a contractual relationship is only as good and effective as the legal landscape in which it is set and that it is not enough to merely rely on contractual relationships.

This was illustrated through the analysis of two UGC policies. This thesis identified that game publishers took advantage of the legal ambiguity by predetermining user creations as UGC, effectively barring it from copyright protection, and that game publishers were effectively drafting UGC licensing clauses on the presumption of UGC's property value. All of which are presumptions made to the benefit of the game publisher. This thesis also discussed the copyright Lockean labour theory and the economic theory as emphasis for the recognition of UGC as property.

Following that, this thesis determined whether copyright was the proper avenue for the legal recognition of copyright. This thesis would argue that although it does seem like the 'simplest' solution, it does not resolve existing tensions between the user and the game publisher and would result in further complications down the line. Instead, it might be better to start fresh and look into supplementing the existing regime with a neighbouring rights provision.

To summarise, this paper sought to unravel the legal landscape surrounding UGC, identify the flaws in the system and provide potential solutions in the hope of moving towards a copyright and UGC regime that is more comprehensive and not merely for commercial benefit.

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Fig. 3 Rebecca Stow and Gavin Lane, Animal Crossing: New Horizons: Custom Designs - How To Customize Furniture And Import Designs, Nintendo Life (Nov 2021) <<https://www.nintendolife.com/guides/animal-crossing-new-horizons-custom-designs-how-to-customize-furniture-and-import-designs>> accessed on 15 August 2023.

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